

26STCV02001 26STCV02001

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-26

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Case Number: 26STCV02001 Hearing Date: August 26, 2026 Dept: O

Tentative Ruling

DEFENDANTS'

PETITION TO COMPEL PLAINTIFF TRACI BLACKMON- BHAGAT TO ARBITRATE

AND TO STAY ACTION PENDING ARBITRATION is CONTINUED to 9/28/26

at 10 AM because the memorandum of points and authorities was not timely

served nor filed; see infra.

Background

This is an

employment case regarding various plaintiffs.

On

January 20, 2026, Plaintiffs TRACI BLACKMON-BHAGAT; TAMRELLE COLLINS; PALOMAR; and CHERYL WILSON filed suit against

Defendants HASA, INC., a California corporation; CHRIS BRINK; GARY BARANCIK;

ALMA BUNCH for:

1. VIOLATION OF UNRUH ACT (CIVIL CODE §51)

2. VIOLATION OF BANE ACT (CIVIL CODE § 52.1)

3. 4. GENDER VIOLENCE (CIVIL CODE§ 52.4) SEXUAL

HARASSMENT (CIVIL CODE § 51.9)

5. SEXUAL ASSAULT

6. SEXUAL BATTERY (CIVIL CODE §1708.5)

7. UNFAIR BUSINESS PRACTICES (BUSINESS & PROFESSIONS

CODE § 17200)

8. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

9. CONSTRUCTIVE FRAUD (CIVIL CODE §1573)

10. NEGLIGENCE

11. NEGLIGENCE PER SE - CONDUCT IN

VIOLATION OF MANDATED REPORTING LAWS

12. NEGLIGENT HIRING, TRAINING, SUPERVISION, AND

RETENTION;

13. NEGLIGENT FAILURE TO WARN, TRAIN OR EDUCATE

14. ASSAULT

15. BATTERY

16. PREMISES LIABILITY

17. INTENTIONAL MISREPRESENTATION

18. VICARIOUS LIABILITY

On June

4, 2026, the instant petition/motion was filed.

On June 25, 2026, an opposition was

filed.

On August 4, 2026, a memorandum of

points and authorities was filed.

On

August 19, 2026, a reply was filed.

Discussion

The

court will not reach the merits at this time because the memorandum of points

and authorities was not timely served upon Plaintiff. While a petition was

filed on June 4, 2026 which provided the summary of arguments and the

supporting documents, the analysis is set forth in the 8/4 filing, which

is after the filing of the opposition. (Pursuant to CCP section 1005(b),

motions must be filed and served at least 16 court days before the hearing.)

Accordingly, to ensure that Plaintiff has a fair opportunity to respond to

Defendant's points and authorities, the court continues the hearing to

allow for the filing of a supplemental opposition and reply,

should the parties elect to do so.[1]

That

said, the court is uncertain what this court is to compel as the moving papers

(including the reply) reference an already pending arbitration before

AAA, Case No. 01-26-0003-3029. To the extent that Defendant is asking this

court to enforce a delegation provision, that does not appear to be the crux

of the motion. As the court is continuing the hearing for additional briefing,

the parties may use that opportunity to address this point.

The

court will continue the hearing on this motion to compel arbitration re:

Plaintiff Blackmon-Bhagat to 9/28/26 at 10 AM. The parties are to coordinate

amongst themselves for a briefing schedule which must be memorialized in

writing. The final supplemental brief must be filed at least five court days

before the 9/28/26 hearing date. The court will be continuing all other motions

to a date after 9/28/26 (to be determined at the 9/28/26 hearing).

Notwithstanding, the due dates for the filings will remain due with respect to

the original hearing dates.

Conclusion

Based upon

the foregoing, the hearing is continued to 9/28/26 at 10 AM; the parties are to

coordinate amongst themselves for a briefing scheduled that must be agreed upon

by the parties and memorialized in writing.

[1] Plus, it is in this 8/4 filing that Defendant raises

the argument of section 402. (See 8/4 Filing p. 8 ["Defendants anticipate that

Plaintiff will argue that this case cannot be compelled to arbitration under

the FAA, allegedly because section 402 of the federal law precludes forced

arbitration of sexual assault and sexual harassment claims in cases under the

FAA."].)